

Petitioner

Abigail Noel Fisher

Respondent

University of Texas at Austin, et al.

Location

University of Texas at Austin Undergraduate Admissions Center

Docket no.

14-981

Decided by

[Roberts Court](#)

Lower court

United States Court of Appeals for the Fifth Circuit

Citation

[579 US \(2016\)](#)

Granted

Jun 29, 2015

Argued

Dec 9, 2015

Decided

Jun 23, 2016

Advocates

[Bert W. Rein](#) *for the petitioner*

[Gregory G. Garre](#) *for the respondents*

[Donald B. Verrilli, Jr.](#) *Solicitor General, for the United States as amicus curiae, for the respondents*

Facts of the case

Abigail Fisher, a white female, applied for admission to the University of Texas but was denied. She did not qualify for Texas' Top Ten Percent Plan, which guarantees admission to the top ten percent of every in-state graduating high school class. For the remaining spots,

the university considers many factors, including race. Fisher sued the University and argued that the use of race as a consideration in the admissions process violated the Equal Protection Clause of the Fourteenth Amendment. The district court held that the University's admissions process was constitutional, and the U.S. Court of Appeals for the Fifth Circuit affirmed. The case went to the Supreme Court, which held that the appellate court erred by not applying the strict scrutiny standard to the University's admission policies. The case was remanded, and the appellate court reaffirmed the lower court's decision by holding that the University of Texas' use of race as a consideration in the admissions process was sufficiently narrowly tailored to the legitimate interest of promoting educational diversity and therefore satisfied strict scrutiny.

Question

Does the University of Texas' use of race as a consideration in the admissions process violate the Equal Protection Clause of the Fourteenth Amendment?

Conclusion

Sort:

- **by seniority**
- **by ideology**
- **4–3 decision for University of Texas
majority opinion by Anthony M. Kennedy**

The race-conscious admissions program in use at the time of the suit is legal under the Equal Protection Clause.

The University of Texas' use of race as a consideration in the admissions process did not violate the Equal Protection Clause of the Fourteenth Amendment. Justice Anthony M. Kennedy delivered the opinion for the 4-3 majority. The Court held that the University of Texas' use of race as a factor in the holistic review used to fill the spots remaining after the Top Ten Percent Plan was narrowly tailored to serve a compelling state interest. Previous precedent had established that educational diversity is a compelling interest as long as it is expressed as a concrete and precise goal that is neither a quota of minority students nor an amorphous idea of diversity. In this case, the Court determined that the University of Texas sufficiently expressed a series of concrete goals along with a reasoned explanation for its decision to pursue these goals along with a thoughtful consideration of why previous attempts to achieve the goals had not been successful. The University of Texas' plan is also narrowly tailored to serve this compelling interest because there are no other available and workable alternatives for doing so.

Justice Clarence Thomas wrote a dissent in which he argued that the Equal Protection Clause of the Fourteenth Amendment categorically prohibits the use of race as a consideration in a

higher education admissions process. In his separate dissent, Justice Samuel A. Alito, Jr. wrote that majority's decision was too deferential to the University of Texas' determination that its use of race in the admissions process was narrowly tailored to serve a compelling interest and that the majority failed to properly apply strict scrutiny. Because the Fourteenth Amendment's Equal Protection Clause was enacted at least in part to prevent the government from treating individuals as merely components of racial class, race-based classifications, regardless of their purpose must be subject to the strictest level of constitutional scrutiny. In this case, the University of Texas' use of race in its admissions policy cannot withstand strict scrutiny because the University's interest is not sufficiently clearly defined and therefore judicial review to determine whether the policy is narrowly tailored is impossible. Even if it were, the goal of demographic diversity could only feasibly be achieved using impermissible quotas for racial balancing that are based on stereotypes. Justice Alito also argued that the use of racial preferences is unnecessary to achieve the goal of diversity because the admissions process could use a race-neutral holistic review based on life experiences that would achieve the same effect. Chief Justice John G. Roberts, Jr. and Justice Clarence Thomas joined in the dissent.

Justice Elena Kagan did not participate in the discussion or decision of the case.